

IN RE FORFEITURE OF \$3,800.00

22CF13701

RESPONDENT'S MOTION TO STRIKE CLAIM OPPOSING FORFEITURE

This is a special proceeding by which an individual aggrieved by a government seizure may challenge a forfeiture thereof. Although the claimant is not a defendant in a pending criminal matter, the claim here is related to 21C19856 and 21CF13584, and the alleged fruit of an unlawful marijuana cultivation venture.

Before the Court is a motion by The People to strike the claim as untimely.

Pursuant to H&S §11488.5(a)(1), any person laying claim to property seized pursuant to the Uniform Controlled Substances Act has 30 days from actual notice of the seizure, or 30 days from the last published notification of seizure, to file with the Superior Court a verified claim establishing a legal right to the property seized. The People first contend that claimant had “actual notice” of the seizure because she was present when it occurred, but this contention is not supported with any competent evidence. However, notice of the seizure ran in the Valley Springs News on 09/15/21, 09/22/21, and 09/29/21 – leaving claimant 30 days thereafter to file the claim. Her claim was not filed until 01/14/22, and was thus untimely.

There is another reason to strike the claim, and that is for want of proper verification. While the claim form does contain a signature for the claimant under oath, the signature was obviously placed there by electronic means. Pursuant to Civil Code §1633.9(a), an electronic signature may be attributed to a person only if “it was the act of the person.” The mere presence of an e-signature, with nothing more, is generally not compelling evidence of intent. (See *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 546.)

Nevertheless, the motion to strike is procedurally defective and must be continued. Pursuant to H&S Code §11488.5(c)(3), “the provisions of the Code of Civil Procedure shall apply to proceedings under this chapter,” and the Code of Civil Procedure requires a good faith meet and confer before any motion to strike may be filed/heard. (See CCP §435.5(a).) Because there is no declaration evincing that meet and confer process, the motion must be continued. (See CCP §435.5(a)(4).) Hearing continued to April 15, 2022, at 9:00 a.m. in Department 2. At least 10 calendar days prior, The People must file and serve a §435.5 declaration.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order shall be required.

KRPAN v. SLIGHT et al

20CV44854

REALTOR DEFENDANTS' MOTIONS TO COMPEL FURTHER RESPONSES TO RPDS, FROGS AND SROGS

This is a civil action based on a residential real property transaction allegedly tainted by construction and undisclosed defects. Before the Court are three additional discovery motions filed by the “realtor defendants” against plaintiff. (Although the time is not yet upon us, this Court notes that if called upon to resolve many more discovery disputes, a discovery referee may be appointed.)

The first motion involves a request for production of all communications concerning the subject property between plaintiff and Tanko Well Drilling (No. 10), Dave’s Plumbing (No. 11), AL Guy Jordan Company (No. 13), Mark Lawrence Baymiller (No. 15), Life Safety Fire Protection (No.17), American Gutter Solutions (No. 18), and Weatherby-Reynolds Consulting Engineers, Inc. dba Weatherby-Reynolds-Fritson Engineering (No. 19). For each, plaintiff *initially* responded as follows: “after a diligent search and reasonable inquiry, Responding Party is unable to produce documents responsive to this request because no such documents are in the Responding Party’s possession, custody, or control.”

Defendants are correct that the *initial* response was not code-complaint. (See CCP §2031.230.) Plaintiff has since served a supplemental response, which also is not code-complaint since “not locating documents” and “no documents in possession” are not responses enumerated in §2031.230. Defendants have accepted the supplemental response, but now contend that no documents were actually provided (despite a representation that some documents were attached to the supplemental response). A request for actual documents to be produced is a *different* motion than one seeking a code-compliant response, and is difficult to resolve in a vacuum. As such, this Court will GRANT the motion for a code-compliant response, and order plaintiff to produce the